

Smt. Sabiya Khatoon v. Executive Engineer, Madhyanchal Vidhut Vitran Nigam Ltd. and Another

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 26 September 2024 · WRIT - C No. 7851 of 2024 · **Writ dismissed as withdrawn with liberty to file afresh.**

HEADNOTE

The licensee was allowed time to take instructions on documents for a new connection. The petitioner then did not press her challenge to the civil-court orders. Alok Mathur, J. permitted that deletion and directed that the mandamus for supply be placed before the Division Bench. On 26 September 2024 the Division Bench dismissed the writ as withdrawn, with liberty to file afresh, without deciding entitlement under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Sabiya Khatoon sought supply for premises at Mohalla Barhiyapura, Bahraich. Connection No. 3564604000 stood in her husband Zafar Ali's name and bills were paid, until a dispute with his brother Aslam Ali caused permanent disconnection. She applied afresh, represented on 26 September 2023, and sued for a mandatory injunction. The civil court gave no direction in her favour. She assailed the Civil Judge's order of 6 April 2024 and the District Judge's order of 23 July 2024 in this writ against Madhyanchal Vidhut Vitran Nigam Ltd.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

writ withdrawn without a supply-code construction

HOLDING

On 17 September 2024 the Single Judge allowed the petitioner to delete prayer II, which assailed the orders of the Civil Judge (Senior Division), Bahraich dated 6 April 2024 and of the District Judge, Bahraich dated 23 July 2024, and directed the Registry to place the remaining mandamus for an electricity connection before the Division Bench. On 26 September 2024 the Division Bench dismissed the writ as withdrawn, with liberty to file afresh. No direction was issued to grant or refuse the connection. ¶ 4-7

PRINCIPLE TAGS

procedural-listing-no-construction No clause of the Electricity Supply Code, 2005 was construed. After a short hearing the writ, which sought a mandamus for a connection and had challenged the civil-court orders, was dismissed as withdrawn with liberty to file afresh. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A PERSON WHO IS NOT THE OWNER MAY BE GRANTED A CONNECTION UNDER THE ELECTRICITY SUPPLY CODE, 2005 AFTER FURNISHING AN INDEMNITY BOND

Counsel submitted the point. The writ was withdrawn before any decision, with liberty to file afresh. ¶ 4

NOT DECIDED — VALIDITY OF THE CIVIL JUDGE'S ORDER DATED 6 APRIL 2024 AND THE DISTRICT JUDGE'S ORDER DATED 23 JULY 2024

Prayer II assailing those orders was not pressed and was permitted to be deleted. ¶ 4-5

